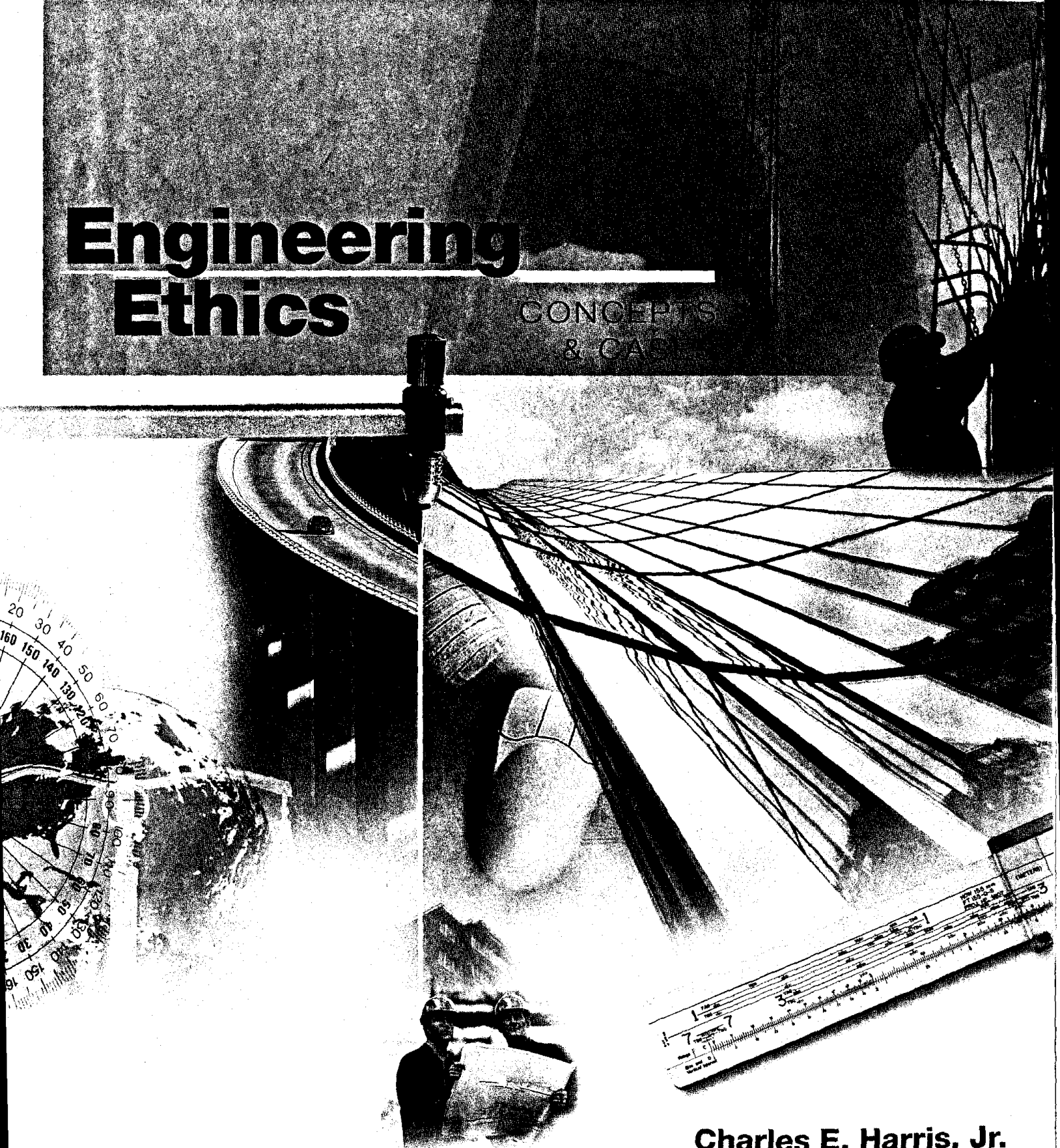


Engineering Ethics

CONCEPTS
& CASES



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Chapter 10

International Engineering Professionalism

The clothing industry is perhaps the most competitive in the world.¹ Clothing manufacturing has been the first level of industrialization in most countries: Hong Kong, South Korea, Taiwan, China, Myanmar, Bangladesh, Sri Lanka, the Maldives, Laos, Vietnam, Bahrain, Indonesia, El Salvador, Honduras, and the Dominican Republic. Many factories in these countries employ young women in sweatshop conditions. Yet some critics argue that sweatshop conditions (and even perhaps child labor) are a necessary part of economic development. David Lindauer, Wellesley economist and World Bank consultant, remarks:

We know of no case where a nation developed a modern manufacturing sector without first going through a "sweatshop" phase. How long ago was it that children could be found working in the textile factories of Lowell, Massachusetts; or Manchester, England; or of Osaka, Japan?²

Similarly, a workers' rights advocate in Bangladesh argues that throwing children out of work and onto the streets "would be a serious violation of their human rights."³

* Harwell & James (H&J) is a small clothing manufacturer, with sales that equal only 1.5 percent of Levi Strauss's, the industry leader. It owns and operates a plant in Country X whose employees are mostly young women from the countryside. The young women live in company dormitories and work for \$0.80 per day, producing garments that are at the low end of the price spectrum. They work 12-hour days in a clean, safe, and well-lit factory. The young women describe the work as hard but say they still prefer it to village life. Some of the young women are probably the sole wage earners in their families and, without these jobs, might well be forced into begging or prostitution. H&J does not employ children under the age of 14, and there are no serious health or safety problems at the plant. Some critics have argued, however, that H&J should leave Country

X. A manager for H&J responds that if his firm left Country X, another firm would take its place. "The message from business," he maintains, "is to follow the dollar and learn to effect changes from within."⁴

Hanna is an engineer whose company has been asked to design and supervise the manufacture of some new equipment for the H&J plant in Country X. Hanna will be asked to spend a year in Country X, supervising the installation of the equipment and training plant personnel in its use. The new equipment should improve efficiency and safety in the plant. Nevertheless, some of Hanna's engineering colleagues argue that she should not take the assignment because it makes her a party to the exploitation of the young women.

10.1 Introduction

Many U.S. engineers are accepting assignments overseas or are designing or manufacturing products for other countries. Furthermore, engineers and engineering students are coming to the United States for study or work. Similar crossings of national and cultural boundaries is occurring throughout the world. As the above case illustrates, these boundary crossings can produce ethical dilemmas.

Let us refer to an engineer's country of origin as the "home country" and the country other than her place of origin as the "host country." Problems in moving from home to host country can be of two types. One type is illustrated by the case at the beginning of this chapter, where home-country standards appear to conflict with the conditions and standards in host countries. Here the problem is to decide whether host-country or home-country standards are most appropriate, or whether the proper action consists of a compromise between the two.

Another type is illustrated by problems that arise in economic development and technology transfer. We shall call these countries that are not fully industrialized *lesser industrialized countries* (LICs). Here one is simply seeking guidelines for contributing to the development of host countries in the most ethically acceptable manner. What should be done when technology transfer threatens traditions and values of the host country? To what extent should the imposition of risk on the local population or damage to the environment be justified?

In seeking guidelines for these kinds of boundary-crossing problems, we should avoid two extremes. One extreme is to assume in some kind of simple way that the values of our own culture should always guide our actions. For one thing, another country may be so different that our own values cannot apply in a straightforward way. For example, corruption may be so pervasive that it is impossible to do all of one's business with vendors or customers or government officials who are free of corruption. For another thing, host-country standards may be as good as or better than home-country standards. Whether Western individualism is superior to the group orientation predominant in many cultures (and

once predominant in ours) is a matter of debate. Whether it is best to separate business and personal friendship, as is often done in the West, is also open to question.

Another extreme is to adopt the guideline, "When in Rome, do as the Romans do." In other words, home-country engineers would simply follow local customs and laws and act as if they were citizens of the host country. This option is often associated with *moral relativism*, the view that the truth of our moral beliefs is determined by (or "relative" to) the culture in which we are living. This view is also subject to criticism. First, it may lead to illegal actions. For example, the Foreign Corrupt Practices Act, passed by the U.S. Congress in 1977, makes it illegal for U.S. citizens to engage in practices, such as paying bribes and some types of extortion, that may be common in a host country. Second, an action might be so clearly harmful or so morally repugnant that it would be difficult to justify. Following such practices would in some cases severely compromise the conscience of a home-country professional. To take an extreme example, slavery is still practiced in some parts of the world, but few engineers would want to work in factories that employ slave labor. To take a less extreme example, safety and health standards in a host country may allow practices that are so harmful to employees, the surrounding population, the long-term well-being of the host country, or the environment of the host country that following them would be a severe violation of both the consciences and the professional codes of U.S. professionals.

No general guidelines can answer either of these types of problems, as they would manifest themselves in particular situations. Furthermore, general guidelines and applications to a few situations is all that we can offer. However, we believe that general guidelines will be useful and will serve to set some parameters for thinking in this area.

In making decisions in ethically troubling situations, engineers naturally turn to their professional codes of ethics. There is evidence that many of the major codes are indeed intended to apply to what we can call international ethics as well as to home-country dilemmas. One major engineering society, the IEEE, is explicitly an international organization. Its code opens with an acknowledgment of "the importance of our technologies in affecting the quality of life throughout the world. . . ." Recent modifications in the ASME code (recently changed to "ASME International") make similar references to the international environment.

A 1996 decision by the NSPE's Board of Ethical Review makes it clear that the NSPE code is also intended to apply to the international environment. In Case 96-5, the board considered an engineer (Engineer A) who was asked to submit a proposal on a major water project in Country A. Engineer A was encouraged to retain a local engineer in Country A, who would give substantial gifts to the local officials responsible for awarding the water project contract. The board ruled that Engineer A was still bound by the NSPE code and must not participate in the practice, even though the practice of bribery might have been customary in the host country.

We cannot, however, expect the codes to provide sufficient guidelines for all situations in international ethics. Additional norms are desirable, norms that are

more explicitly directed to the kinds of issues that arise in international ethics and less culture-dependent than the ethical views of either the home or host country. Let us call these norms culture-transcending (CT) norms. How can such norms be found?

10.2 The Search for Culture-Transcending Norms

The simplest way of identifying CT norms would be to isolate those common values already embraced by all cultures. Sissela Bok has attempted to identify "three categories of values so fundamental to group survival that they have had to be worked out in even the smallest communities."⁵ First, "all human groups . . . and all religious, moral, and legal traditions stress some form of positive duties regarding mutual support, loyalty, and reciprocity."⁶ Children must be reared, the weak and sick tended, and parents honored. Second, all cultures embrace "negative duties to refrain from harmful action."⁷ These chiefly include injunctions against violence, deceit, and betrayal. Third, there are "norms for at least rudimentary fairness and procedural justice" in the event that there are conflicts with respect to the first two categories.⁸ Bearing false witness, for example, is condemned in virtually all societies.

Two issues are raised by Bok's approach to identifying CT norms. First, not all societies appear to adhere to even this rather restricted set of common values. Bok admits that many societies do not apply these values to outsiders and enemies, who are often seen as barbarians and less than fully human. And even within communities, the values are not universally applied. "Violence, for example, against women, or children, or slaves and servants has been common from biblical times on."⁹ Her apparent solution is to hold that the societies have simply been inconsistent in applying their own values. She appears to regard child prostitution and female genital manipulation as examples of this inconsistency.¹⁰ Of course, another interpretation of the existence of these practices she identifies is that the societies simply do not embrace the common values at all. However, we can make sense of her position that, for various reasons, societies often do not consistently apply values that they embrace in other areas. One reason for this inconsistency is that crucial terms may not be interpreted in the same way. For example, some cultures may not consider female genital mutilation to be an instance of "violence" against women. And violence against foreigners may be explained on the grounds that the prohibition only applies to "humans," and foreigners are not fully "human."

The second and more serious problem for our purposes is that, by her own admission, these values are "minimalist." Although she uses this term in many senses, the most important is that they are "far from constituting entire systems of ethics, law, or theology. . . ." They are "the bare bones of more abstract and complex values and ideals such as 'love,' 'truth,' 'respect for life,' 'fidelity,' 'equality,' 'integrity,' and 'justice.'"¹¹ From the standpoint of the needs of international ethics, there is no mention of bribes, exploitation, the environment, or human rights.

If these norms are to be included as CT norms, we must look beyond the list of common values that Bok identifies.

Another and markedly different approach to the search for CT norms is given by David Wong, who finds the limits to moral diversity, not in substantive norms of the type that Bok identifies, but in two criteria by which we should evaluate the provisions of any moral code. If the substantive norms of any moral code do not conform to these criteria, then they may be rejected. The first of these criteria is *internal consistency*: A norm must be consistent with the other norms of the culture. Wong believes, for example, that the subordination of women to men that is a part of traditional Chinese culture is inconsistent with the Confucian tradition of *filiality*, or the relationship of children to their parents. These values imply, Wong believes, that every person should be allowed to realize those values by making his or her full contribution to the community.¹²

The second criterion is *external*: the values of a culture can be criticized by arguing that the society's moral code does not measure up to universal criteria for any adequate morality. Any society must deal with conflicting interests. Although there is more than one way of doing this effectively, some ways may not be successful. We might argue, for example, that although many cultures tolerate bribery, its acceptance is not an effective way of harmonizing conflicting interests between people. Bribery allows economic conflicts to be resolved by money, instead of by open economic competition, based on providing the best service or product at the best price. Thus, bribery is not an appropriate part of any moral code. Wong himself believes that the torture of political dissidents cannot be a part of any adequate morality, although he does not explain his belief.¹³

Despite the promising nature of Wong's proposal, the arguments needed to establish that a given precept of a moral code violates one or the other of his two criteria may be quite controversial. For example, a Confucian might say that, although the subordination of women appears to violate the value of filiality, it is in conformity with the "natural order," which places men above women. More important for our purposes, however, is the fact that it is probably not appropriate to ask professionals to go through the rather elaborate procedure of applying such second-order criteria to the norms of a given country in order to come up with those that might qualify as CT norms. At best, it takes a lot of work to establish that a given practice in Country X violates one or both of Wong's criteria. We need a set of CT norms that are reasonably specific, or at least more than general criteria of the types Wong proposes.

What are the possible sources of such norms? If we move beyond the minimalist set of norms that Bok identifies, we may well move beyond values that are actually embraced by all, or almost all, societies. We will be forced to make a critical move from values that are purely *de facto* (in fact, universally embraced) to *de jure* (norms that ought to be universally embraced). How can we identify such a set of *de jure* CT norms?

One source is the writings of major ethical philosophers and religious teachers. Probably the major guideline from this area is the Golden Rule.¹⁴ The Golden Rule is embraced in some form by most of the major ethical and religious traditions of

the world. Using the Golden Rule, one can ask, "How would I want foreign engineers to act in my country if I were a host-country citizen?" This question is not always easy to answer, because it may be difficult to put yourself in the position of a host-country citizen. This is especially true if the host-country citizen lives in quite different economic and social circumstances, has a much lower level of education and technological sophistication, or has distinctly different values and practices. Nevertheless, some conclusions seem to follow from the Golden Rule. It is difficult to imagine, for example, that anyone would want to be exploited, or that one would not want the traditions of her own country respected, at least within certain limits. Similarly, if one were a citizen of Country X (a host country), he could put himself in the place of an engineer working in Country X and know that he would not want to have to violate his own conscience in order to work in Country X.

A second source of CT norms is international documents, such as the Universal Declaration of Human Rights of the United Nations. As we shall point out shortly, these documents emphasize human rights that are held to be the birthright of all people. Although it is possible to argue that these documents are fundamentally Western in origin, they are universally subscribed to, whether or not they are followed in practice. Keep in mind that we are attempting to identify *de jure* norms, not necessarily ones that are universally followed.

A third source of CT norms is the codes of engineering societies. As we have seen, many of the codes of major engineering societies are clearly intended to apply in the international setting. Of particular importance is the requirement in most codes that engineers hold paramount the safety, health, and welfare of the public. We shall see, however, that sometimes the provisions intended to apply in the United States may have to be modified for application to countries other than the United States. For example, because of differing cultural traditions, it may be appropriate to make some modifications in the rules on gift-giving in the international context.

A fourth source of CT norms is the major insights of respect for persons and utilitarian theories. These theories point to fundamental moral ideas that are the base of much of our moral reasoning and which often have considerable relevance in the international environment. They also often serve to confirm norms derived from other sources. The morality of respect for persons emphasizes the importance of treating every individual as a moral agent deserving respect. Utilitarianism emphasizes the importance of maximizing overall human well-being. Both ideas have considerable relevance to international ethics.

10.3 The CT Norms Identified and Explained

From these sources, we can identify the following nine CT norms: (1) avoiding exploitation, (2) avoiding paternalism, (3) avoiding bribery and gifts, (4) avoiding the violation of human rights, (5) promoting the host country's welfare, (6) respecting cultural norms and laws, (7) protecting health and safety, (8) protecting the environment, and (9) promoting legitimate background institutions.

Avoiding Exploitation

Exploitation, especially of the weak and vulnerable, should be avoided. Here is a paradigm case:

Joe's firm, Coppergiant, is the most powerful copper-mining and copper-smelting company in the world. It controls world prices and keeps competitors away from some of the most lucrative sources of copper. Joe works for Coppergiant in Country X, the firm's most lucrative source of copper. In Country X, Coppergiant buys copper at prices considerably below the world market and pays its workers the lowest wages for mining and smelting work in the world. As a result, Coppergiant makes enormous profits. Because the company pays off government officials and has so much control over the world market in copper, no other mining and smelting company is allowed into the country. Country X is desperately poor, and copper is virtually its only source of foreign currency.

According to Robert E. Goodin, the risk of exploitation arises when the following five conditions are present:¹⁵

1. There is an imbalance of (usually economic) power between the dominant and subordinate or exploited party.
2. The subordinate party needs the resources provided by the dominant party to protect his vital interests.
3. For the subordinate party, the exploitative relationship is the only source of such resources.
4. The dominant party in the relationship exercises discretionary control over the needed resources.
5. The resources of the subordinate party (natural resources, labor, and so on) are used without adequate compensation.

The paradigm case meets all five of these conditions. There is an asymmetrical balance of power between Country X and Jim's firm. Country X desperately needs the foreign currency provided by Jim's firm. The revenues through Jim's firm are the only source of the currency. Jim's firm, through its control of the market, exercises discretionary control over these revenues. Finally, the natural and labor resources of Country X are used without adequate compensation.

Exploitation is usually wrong because it violates several of the sources of norms mentioned above. For example, it violates the Golden Rule. It is difficult to imagine that anyone in any culture would, under normal circumstances, want to be the victim of exploitation. It also violates the moral agency of individuals. Nevertheless, there may be situations in which some degree of exploitation is justified. Even if we should consider it to be exploitation when a buyer pays low prices for the natural resources of an LIC, when the price represents the market value of the resources, it is still possible to argue that the exploitation is justified, because otherwise the suppliers of the resources will be in an even worse condition. An argument can be made that it violates all but the fourth of the criteria for exploitation. The government of an LIC, however, might rationally consent to these prices, as

the only way to promote economic development, hoping that in the future prices will rise.

Avoiding Paternalism

The paternalistic treatment of home-country citizens should be avoided. Paternalism is substituting one's own powers of judgment for that of another (the recipient) to promote the recipient's benefit. If exploitation expresses too little concern for another's well-being, paternalism expresses too much, or at least expresses it in the wrong way. Here is a paradigm case of paternalism:

Robin's firm operates a large pineapple plantation in Country X. The firm has required the workers to leave the traditional villages and live in small, uniform houses on uniformly laid-out streets. The firm's managers believe that the "new" villages are more aesthetically pleasing and that the workers should be "educated" to appreciate uniformity. The workers object, arguing that the new accommodations are boring and will destroy much of their traditional way of life.

Some ethicists argue that the paramountcy requirement in professional engineering codes is too paternalistic and that engineers can be too paternalistic in following it.¹⁶ This claim is especially plausible with respect to the welfare requirement because to hold paramount the welfare of the public, one must know what welfare is. Yet deciding what constitutes someone else's welfare, especially where values differ, can be highly paternalistic and may appear patronizing and even insulting to the other person.

Paternalism can rarely be justified by the Golden Rule. Few people want to be treated paternalistically. Yet there may be cases when paternalistic action can be justified. To discuss these cases, we need to make a distinction between weak paternalism and strong paternalism. In *weak paternalism*, the paternalist substitutes her judgment for the recipient's when there is reason to believe the recipient may not be exercising his or her moral agency effectively. Weak paternalism might well be consented to by a rational person and would hence be justified by the Golden Rule.

There are several types of situations in which we might justifiably exercise weak paternalism. The presence of any one of these conditions is sufficient to justify weak paternalism:

- A person may be under undue emotional pressure.
- A person may be ignorant of the consequences of her action.
- A person may be too young to fully comprehend the factors relevant to her decision.
- Time may be necessary for the paternalist to determine whether a person is making a free and informed decision.

In *strong paternalism*, the paternalist substitutes her judgment for the recipient's, even when there is no reason to believe the recipient is not exercising his moral

agency effectively. The paternalist's justification for doing this is the potential harm or decreased well-being that can be avoided or the benefit that can be produced by the paternalistic action. The paradigmatic example of paternalism described earlier is an instance of strong paternalism. The managers believe that the uniformly laid-out villages have greater aesthetic value, even though the villagers do not share these aesthetic values. Strong paternalism, because it by definition does something to which the recipient does not consent, would be difficult to justify by an appeal to the Golden Rule.

Citizens of LICs are particularly likely to experience the conditions that might justify weak paternalism, and perhaps even strong paternalism in a very few cases. A lower level of education and technological sophistication can render LIC citizens less able to make responsible decisions that affect their well-being. In such circumstances, a rational person might well consent to be acted upon in a weakly paternalistic way.

John is employed by a pharmaceutical firm in Country X. The firm markets a dietary supplement in Country X that must be mixed with water before it is ingested. John has good reason to believe that the citizens of the country where he works will not read or follow the instructions carefully. As a result of a failure to follow directions, as well as their general ignorance about nutrition, many consumers of the product in Country X will mix the supplement with contaminated water and will also dilute the supplement to make it last longer. These variations from the instructions will cause health problems.

At least one of the conditions justifying weak paternalism (ignorance of the consequences of action) is satisfied, and one condition is sufficient.

Avoiding Bribery and Gifts

Bribery and giving excessive gifts should be avoided. This is probably the single most important issue faced by U.S. engineers in the international environment. The issue is unusually complex because many cases commonly described as illustrating bribery turn out to be better understood as falling in another category. One such category is extortion, which might roughly (but inadequately) be defined as "the act of threatening someone with harm (that the extorter is not entitled to inflict) to obtain benefits to which the extorter has no prior right."¹⁷ There are also *grease payments*, which are payments to hasten or facilitate the performance of certain functions, such as the passage of goods through customs, the installation of a telephone, or the processing of a legal document. Finally, many cultures encourage the giving and receiving of gifts as a proper way to cement friendships. In many cultures, it is also believed that friendships should be the basis of business relationships.

Many engineering codes explicitly condemn bribery, and we have seen that the NSPE Board of Ethical Review has determined that these prohibitions apply in the international environment as well. The codes do not, however, ordinarily make the kinds of distinctions discussed in the previous paragraph. Because of the importance and complexity of this topic, we shall consider it again in a later section.

Avoiding the Violation of Human Rights

Human rights should not be violated. People in many cultures, including many non-Western cultures, now appeal to human rights in making their case for everything from minimal standards of living to protection from torture or political oppression. We have already seen that rights can be justified by the ethics of respect for persons, because rights help protect the moral agency of individuals. Utilitarians also often argue that respecting the rights of individuals also promotes human happiness or well-being. People live happier lives when their fundamental rights are respected.

"Rights talk" has become a near-universal vocabulary for ethical discourse. One measure of the cross-cultural nature of "rights talk" is the existence of the United Nation's International Bill of Human Rights, adopted in 1948, and two later documents: the International Covenant on Economic, Social and Cultural Rights and the International Covenant on Civil and Political Rights.¹⁸ These documents ascribe to all human beings the rights to:

- life,
- liberty,
- security of person,
- not be held in slavery,
- not be tortured or subjected to inhuman or degrading punishment,
- recognition before the law,
- impartial trial and protection from arbitrary arrest,
- freedom of movement,
- marriage,
- not marry without free consent,
- property ownership,
- freedom of thought,
- peaceful assembly and participation in government,
- social security and work,
- education,
- participate in and form trade unions,
- nondiscrimination, and
- a minimal standard of living.

This is a long list, and some theorists might argue that it is simply a "wish list," given the conditions that actually prevail in many countries. Notice also that some

of the rights are what we have called "positive" rights; that is, they are not simply rights to noninterference from others, such as the rights not to be held in slavery or tortured, but rights to certain advantages, such as education, social security, and work. These require from others not only a negative duty to noninterference but a positive duty to help others achieve these rights.

On the other hand, most of us would consider all of these rights highly desirable. The question is whether they should be considered as rights rather than as simply desirable things to have. For example, should we say that one has a right to a minimal standard of living? Which of these rights do professionals in the international arena have an obligation to respect?

James Nickel helps to answer this question by setting up several conditions for accepting what we shall call an *international right*. An international right is a specific right that every country should, if resources and conditions permit, grant to its citizens. In terms of generality and abstraction, an international right falls between the very abstract rights given in Chapter 4 and the more specific rights guaranteed by laws and constitutions by individual governments. Here are the conditions that Nickel suggests are most relevant for our purposes:

1. The right must protect something of very general importance.
2. The right must be subject to substantial and recurrent threats.
3. The obligations or burdens imposed by the right must be affordable in relation to the resources of the country, the other obligations the country must fulfill, and fairness in the distributions of burdens among citizens.¹⁹

If we judge the United Nations' list of rights by Nickel's criteria, then we might have reason to question several of the rights. Some countries may not have the economic resources to support the claims to a minimal education and subsistence, however desirable these may be. Perhaps we should say that these rights are valid, insofar as a country can afford to provide them.

Another way to determine what rights people have is to look at the more abstract list of rights given in Chapter 4. Gewirth has derived his list of rights from a consideration of what is necessary for a person to exercise her moral agency. Gewirth lists a hierarchy of rights not provided by the U.N. documents, but there is a great deal of agreement between the two documents. In general, Gewirth's list of rights is either the same as the United Nations' list (as in the right to own property) or Gewirth's rights imply the more specific rights in the list (as the right to physical integrity implies the right not to be tortured). It is an interesting exercise to see how the other rights proposed by the U.N. documents can be derived from Gewirth's hierarchy. Agreement among several accounts of rights does not, of course, guarantee truth; but it does show that there is a high degree of consensus on what rights human beings should have, whether or not the rights are honored in practice.

Some critics object to the appeal to rights on the grounds that the doctrine of rights is too closely associated with recent Western civilization. Even in the West, the critics argue, rights are a recent invention. Before the 18th century, rights were not an important part of Western moral discourse. Why should such a recent

innovation in morality in Western society be thought to have universal import? Alan Gewirth has argued that rights have a longer pedigree in Western and other moral traditions than many suspect. Although the term *right* may be a recent invention, premodern societies and a concept of people having entitlements connected with property, the fulfillment of contracts, protection from physical assault, and so forth.²⁰ The doctrines of hierarchical political order in Plato and Aristotle, he argues, can be interpreted as implying the natural right of the wiser to rule those who are less wise. The doctrine of what we today might call "equality before the law" can be interpreted as implying a right to equality before the law. Many precepts in Roman law can be explained in terms of rights. And in the feudal era, the agreements between lords and vassals generated what we would today call rights and duties on both sides.

Another argument against rights is that the doctrine of rights implies a Western individualism that is contrary to the values of many non-Western cultures, where the group is more important than the individual. For some critics, embracing the doctrine of rights makes individuals more important than social groups such as the family, clan, tribe, or larger society. Even if most governments officially endorse the U.N. human rights documents, they do so at the cost of denying their own cultural and ethical traditions. For example, in many cultures marriages are arranged by families rather than based on individual consent, and nondemocratic traditions of government emphasize the subservience of individual views to those of a single leader or group.

The easy answer to this objection is that Western individualism is spreading around the world, just as Western technology is spreading around the world. Even if Western values are sometimes destructive of traditional cultures (just as Western technology is), the fact is that Western ways are sweeping the planet. The universally accepted values will tend more and more to be Western values.

Another answer, however, is that a doctrine of human rights need not lead to an unacceptable form of individualism, because rights usually imply correlative duties on the part of others. Although, as we have seen, some of the duties implied by rights are "negative," others are "positive." It is especially these positive duties that bind members of a community to one another. Being a member of a community is more than merely refraining from interfering with others. Each member of the community owes something to other members of the community in a positive way.

Let us see how these positive duties arise. Some people believe that even many of the so-called negative rights imply positive and not merely negative duties on the part of others. The right to physical security is, to be sure, first and foremost a negative right, implying the negative duty of others to refrain from physically harming us. Some theorists believe, however, that it also implies the positive duty of the state or community to provide protection. The rights to a minimal education and a minimal standard of living are positive rights and even more clearly imply certain positive duties on the part of the community. The right to political participation implies positive duties on the part of the community to guarantee these rights as well as negative duties to noninterference in the free exercise of these rights.²¹

There does, however, seem to be some opposition between a doctrine of rights and the norms in some societies. The right not to enter into arranged marriages is much more in accord with contemporary Western individualism than with the group orientation of many societies. The right to ownership of property conflicts with the views of many cultures in which private ownership is not the norm. The right to nondiscriminatory treatment conflicts with the gender roles prescribed in many societies. The right to participation in government conflicts with the non-democratic traditions of many societies. There are many other examples.

So we may conclude that the rights listed by the U.N. documents are an important guide in applying the codes, especially the welfare requirement. Nevertheless, the doctrine of rights, although often providing a useful guideline for applying the codes—especially the welfare requirement—is not completely free of a Western orientation.

Promoting the Host Country's Welfare

Within reasonable limits, the welfare of the host country should be promoted. Using the Golden Rule, we can argue that, if we were host-country citizens, we would want foreign engineers and businesspersons in our country to promote our well-being, all things considered. Engineering codes also require that engineers hold paramount the welfare of the public, implying that engineers must engage in projects whose good outweighs the harm. Utilitarianism also requires us to promote the well-being of others.

There are relatively few indications as to how members of the engineering profession interpret "welfare." In Case 85-2 of the Board of Ethical Review, however, the board argued that promoting public "welfare" justified an engineer's protesting employer policies that resulted in excessive costs and time delays in defense contracts. Thus, public welfare includes the efficient use of tax funds. By similar reasoning, promoting public welfare in an LIC country might include promoting economic development and perhaps even such things as actively cooperating with policies that are designed to eliminate corruption and raise the standards of business and professional conduct.

One difficulty in applying the welfare requirement is the conceptual issue of what is meant by the "public" whose welfare must be held paramount. A useful definition of the "public" for which engineers are responsible is given by Michael Davis:

I would suggest that what makes people a public is their relative innocence, helplessness, or passivity. On this interpretation, "public" would refer to those persons whose lack of information, technical knowledge, or time for deliberation renders them more or less vulnerable to the powers an engineer wields on behalf of his client or employer. An engineer should hold paramount the public safety, health, and welfare to assure that engineers will not be forced to give too little regard to the welfare of those "innocents."²²

One way to determine whether an action would promote the overall well-being of host-country citizens is to ask whether we, as host-country citizens ourselves,

would consent to the action. As an illustration of this guideline, consider the following case:

Your company produces a drug to treat a potentially fatal form of dysentery that affects many people in Country X. The drug, however, has some serious side effects and can produce death in some who take it. The drug is not sold in the United States because of these potentially fatal side effects, and your supervisor asks you whether you think your firm should remove the drug from the market in Country X. You know that although the drug results in some deaths, it will save 10,000 lives for every life lost as a result of the side effects.

In asking yourself whether you would want to have the drug available if you were a citizen of Country X, you might well decide that you would prefer to have it available. This consideration, along with the facts about lives saved and lost, would help you decide how to respond to your supervisor's request for advice.

Respecting Cultural Norms and Laws

Respect the cultural norms and laws of host countries, insofar as this is compatible with the other guidelines. Many corporations explicitly recognize the necessity of recognizing the laws of the countries in which they do business. Applying the ethics of respect for persons, respecting the moral agency of individuals involves respecting their cultural norms and laws, insofar as these norms and laws are compatible with other guidelines, especially those having to do with human rights. Applying the Golden Rule, we can say that as host-country citizens, we would not usually want foreigners to violate our own values and practices. However, the Golden Rule also applies to us, so engineers are justified in not wanting to violate their own conscience. It would be difficult for engineers, for example, to honor cultural norms that sanction human slavery or the use of torture. Another complicating factor is that, in some cases, many host-country citizens may themselves want to change their traditional norms, especially where they interfere with economic development. In other cases, however, host-country citizens may want to preserve their norms and ways of life, even at the cost of less economic development. Economic development is not, after all, the only or supreme human good.

Deciding whether and to what extent one should comply with host-country norms in a given situation can be difficult. Consider the following case, which is modeled on an actual one.²³

You work for a steel company in India, which has the policy of partially compensating its employees with a promise to hire one of the employee's children. This policy is extremely popular with employees in a country where there is a tradition of providing jobs for one's children and the members of one's extended family. But to you, the policy is nepotism and in conflict with the more desirable policy of hiring the most qualified applicant. What should you do?

Given the requirements of the Golden Rule and the ethics of respect for persons, we should start with the presumption that it is better to comply with a host-country

practice unless there is good reason to reject it. To determine whether there is good reason to reject it, however, it will often be useful to apply several of the guidelines. Let us consider the following:

- The practice does not seem to constitute a serious violation of human rights, although it does mean that some people may not be given equal consideration for some of the jobs available.
- The practice does not involve unacceptable paternalism or exploitation.
- The practice does not involve any intentional or avoidable harm other than the fact that a person who was most qualified for the job may not get it.
- Complying with the practice probably promotes the overall well-being of the country, because rejecting the practice would be disruptive not only to the lives of the employees involved but also to the system of family loyalties of which it is a part. On the other hand, the practice may not contribute to the greatest overall economic efficiency because the best person may not always get the job.
- Complying with the norm would probably not produce any severe violation of your conscience. In this regard, you might note that the practice has some features that are common with our practice of allowing a father to pass on an inheritance to his son.
- Finally, the practice does not involve you in any violation of home-country or host-country laws.

Although the practice may not contribute maximally to economic development because it allows a less qualified person to take some jobs and may involve some injustice to some applicants for a job, we must balance these considerations against the fact that the practice is connected with a much larger cultural tradition of family loyalties and that there are somewhat analogous practices in our own culture. Given these considerations, there is probably nothing wrong or at least nothing seriously wrong with complying with the practice, although it might be better if the country eliminated it. This conclusion also illustrates the need not to be overly strict in resolving moral problems in the international context. Complying with the custom of nepotism may make most American engineers uncomfortable. But given the presumption in favor of respecting host-country norms—a presumption that seems to follow from the Golden Rule—and the fact that the violations of the guidelines seem to be minimal, it is probably better to comply with the norms.

Protecting Health and Safety

Protect the health and safety of citizens in the host country. This is a requirement that is explicitly recognized in most engineering codes, and so it must have the status of a universal guideline for engineers. The “public” must include the citizens of host countries as well as one’s home country. Also, applying the Golden

Rule, if we attempt to place ourselves in the position of host-country citizens, we could be certain that we would not want foreign engineers and businesspeople to endanger our health or safety.

The requirement to refrain from endangering health and safety may be more difficult to interpret in some situations, however. Many, perhaps most, technological innovations produce some danger to health and safety. One way to determine whether all avoidable harm has been eliminated is to ask, "Is there anything more that can reasonably be done to eliminate the harmful features of the situation?" Consider the case presented at the beginning of this chapter. One of the questions that H&J managers should ask is, "Is there anything more that we can do, within economic and other limits, to eliminate any harmful aspects of the working condition of the employees in our plant?" Levi Strauss, for example, has "ethical sourcing" guidelines that require environmental protection and safe and healthy working conditions.²⁴ H&J managers should ask whether they have adopted similar or even more stringent policies. If they have not done so and are able to, then it will be difficult for them to argue that they are doing all they can to avoid harm to health and safety.

Protecting the Environment

Recognize an obligation to protect the environment. Several engineering societies have introduced provisions expressing an environmental concern into their codes, and eventually all societies will probably have such a provision. Donaldson and Dunfee recognize concern for the environment as an emerging norm.²⁵ Knowing what obligations one has to the environment, in the face of competing considerations, is not always easy. Consider the following case:

Joyce is a civil engineer employed at a fertilizer plant in Country X. Her plant emits sulfur dioxide pollution at a level far higher than would be allowed in her country. The plant is working overtime to produce fertilizer in a country with a malnourished population. Imposing stricter standards would drastically curtail production.

More facts would have to be known before it could be decided whether Joyce's plant should impose the stricter standards, but engineers should recognize an obligation to care for the environment. Even if one does not recognize an obligation to protect the environment for its own sake, protecting the environment in general promotes human well-being.

Promoting Legitimate Background Institutions

Where ethnically permissible, the background institutions of a society should be supported. As we shall use the term, *background institutions* are a society's laws, practices, and institutions that are necessary for stability and economic success. They include such things as laws that regulate commerce and contracts, the tax system that provides essential revenue, the banking system, and a justice system that applies and

enforces the laws fairly and efficiently. By facilitating the goods of stability and economic progress, background institutions promote the welfare of the citizens of a country. Their promotion is thus justified by the professional engineering codes and utilitarianism. Because most people consider these goods desirable, the nurturing of effective background institutions is also sanctioned by the Golden Rule.

Because taxes are the source of income for governments, the methods of tax collection are part of the background institutions of any society. The method of tax collection in many countries, however, sometimes produces moral dilemmas. Consider the following case:

James works for a U.S. firm in Country X, where it is customary for the government to assess taxes at an exorbitant rate because it expects firms to report only half their actual earnings. If a firm reported its actual earnings, the tax rate would force it out of business. James's firm has adopted the local practice of underreporting its actual earnings, but James wonders whether the practice is ethically acceptable.

A strong argument can be made that it is morally permissible for James's firm to underreport its income to the government of Country X, as long as the practice does not violate the firm's own code of ethics and the firm does not underreport to the U.S. government.²⁶ The practice does not break any of the CT norms. The practice is also in accordance with generally accepted practices in Country X, although it is not acceptable in the United States.

Furthermore, although the practice may not be the most desirable system for collecting taxes (because it is likely to be inefficient and encourages dishonesty and deception), it does provide revenue for financing the essential background institutions of Country X.

10.4 Applying the CT Norms

As with all ethical principles, the CT norms are often difficult to apply. At the very least, there is no automatic and easy way to apply them to specific moral dilemmas. The following suggestions may be helpful.

Proportional Responsibility

Engineers should take only the appropriate degree of personal and professional responsibility for their firms' decisions. Engineers need not take responsibility for decisions over which they have little or no control. Engineers as engineers are not managers, and they need not take full responsibility for management decisions. Engineers do not, for example, ordinarily make decisions on where to locate plants, what products to manufacture, how to interact with the local government, whether to install new pollution-control equipment even if it is not required by

local laws, whether to provide company housing for employees, and whether to contribute to local charitable enterprises. Their responsibility should not go beyond what they have the power to influence.

On the other hand, engineers may often be asked to give advice in these areas, or they may have the opportunity to express an opinion. In some instances, they may find policies and practices of their firms in a host country so morally troublesome that they should refuse to carry them out, refuse to be a part of the firm's international operations, or even resign from the firm. Furthermore, engineers are responsible for the design, production, and implementation of technology. They have a responsibility to design this technology in accordance with standards of professional excellence and in a way that is responsible to the needs of host countries. For example, if an engineer knows that agricultural work in a host country is done mostly by women, then the engineer should design with the requirements of women in mind.

Avoiding Laxism and Rigorism

Engineers should avoid two extremes: moral laxism and moral rigorism. Many situations in the international sphere are not amenable to an ideal solution. In such situations, it is tempting to act in one of two ways, both of which are unsatisfactory from a moral standpoint.

One response is to become morally lax and perhaps even cynical. This is akin to the position in ethical thinking known as *moral laxism*. When a moral position cannot be strictly and clearly applied to a situation, the moral laxist, as we shall interpret this position, says we may do what we want, regardless of how far the action may depart from traditional morality.²⁷ The reasoning here might be, "Because there is no option in this situation that allows me to act in an ideal moral way, I will simply abandon any moral considerations and act in a way that is most compatible with my self-interest or with the self-interest of my firm." This option involves a rejection of ethical and professional considerations and may in some cases even lead an engineer to embrace choices that are illegal.

Another response is to be so concerned with doing the right thing that one may become excessively moralistic and adopt a kind of *moral rigorism*. According to our interpretation, the moral rigorist holds that moral principles must be strictly applied in every situation, no matter what the circumstances.²⁸ The moral rigorist is unwilling to accept the fact that although a given course of action is not the ideal, it may be the best that one can do in the situation, morally speaking. For example, although paternalistic action may be undesirable, it may be unavoidable. Even participation in actions that involve a degree of exploitation may be the best course of action, all things considered. To take another example, suppose social and economic conditions are such that a plant cannot be operated in the host country without damaging the environment. When all considerations are taken into account, including the effect on the host country of losing the plant, then building and operating the plant may still be justified.

Choosing among Competing Local Practices

Sometimes the practices of both the home culture and the host culture fare equally well when tested by the CT norms. Then we must decide which practices to adopt. Most of us recognize that such practices as etiquette, dress, degree of emotional effusiveness, and forms of greeting are equally valid. This is sometimes true of practices that we would recognize as having a distinctly "moral" dimension. Recall the case involving the request to hire members of one's extended family. Country X has a culture that recognizes extended families, with a concomitant obligation of members of the extended families to look out for the economic welfare of other family members. Thus, if one family member gets a job at a new plant, he or she is expected to help other family members get jobs as well. This differs from our own practices, which are based on the nuclear family and a much weaker sense of economic obligation to more distinctly related family members. Although we might originally be inclined to condemn the practice in Country X as nepotism, we might come to recognize it as legitimate, at least within limits, because it is part of a morally legitimate social institution, namely, the extended family. Recognizing the institution of the extended family as legitimate, we might wish to accommodate it, at least insofar as it does not seriously compromise economic efficiency. How do we decide which practice to adopt? Here are two suggestions.

1. When two local practices conflict, the presumption should be in favor of adopting the practices of the host country. There are several reasons for this. First, adopting the standards of the host country usually makes one more acceptable in that country. If engineers are a part of a business venture designed to make money, then the venture is more likely to be successful if those involved make themselves agreeable to host-country residents, and this is more likely to be done if representatives adopt host-country standards. Second, accepting local practices and norms is a way of honoring the local culture. Third, communication with host-country citizens is more effective if host-country norms and lifestyles are adopted.

2. Often, creative middle ways provide ways to resolve a conflict between home-country and host-country practices. In the case involving the request to hire members of an employee's extended family, the firm might establish a policy of hiring one member of an extended family, but no more than one. This would be a way of recognizing the local practice, but at the same time protect other values that might otherwise be neglected such as the need to hire the employee most suited for the job and the need to be fair to other people who would apply for the job.

Should CT Norms Always Prevail?

When a local norm conflicts with a CT norm, the CT norm should ordinarily prevail, but even here things are not always so simple. In real-world situations, it may not always be the case that the CT norm should prevail. In fact, insisting that they always prevail may be a case of moral rigorism. The principal complicating factor

here is that sometimes a CT norm may not be violated (wholly nullified) but merely infringed (partially breached or limited in some way). For example, the right to freedom of movement may not be wholly taken away but merely restricted in some way. Or safety might not be seriously breached, but only compromised in some way. When a CT norm is merely infringed, especially in a relatively minor way, and a local practice is severely violated, it is not always immediately obvious what one should do. Suppose building a plant in one location is slightly less damaging to the environment, but the location is on an ancestral burying ground. Here a local practice having to do with treating the dead with respect conflicts with a CT norm requiring respect for the environment. In order to respect a local practice, it is probably valid to infringe the CT norm regarding the environment.

What about Conflicts between CT Norms?

CT norms may conflict with each other. To refer to an earlier case, a plant may manufacture a fertilizer that contributes to the well-being of Country X by increasing the supply of much-needed food, but the plant may also pollute the environment. Eliminating the pollution may result in an increase in the price of fertilizer and put it beyond the reach of most farmers in the country. Here the CT norms regarding health and the environment conflict. In another example, an engineer's firm produces a drug for treating a life-threatening form of dysentery, but the drug itself can cause death and blindness in a small fraction of the population. There is a safer drug, but most citizens of Country X cannot afford it. Here the same action seems to both conform to and violate the CT norm having to do with health and safety.

10.5 Bribery, Extortion, Grease Payments, and Gifts

Probably the most common question engineers face when encountering a host-country culture is, "What shall I do about bribery and related issues?" Because of the special importance of this issue, let us consider it in more detail.

Bribery

In 1977, the U.S. Congress passed the Foreign Corrupt Practices Act to specifically prohibit bribery of government officials. Typically, a bribe is made to a government official in exchange for violating some official duty or responsibility. The payment might result, for example, in an official's not making a decision to buy a product on its merits. Here is a typical or paradigm case of bribery:

An executive of Company A hopes to sell 25 airplanes to the national airline of Country X. The deal requires the approval of the head of the ministry of transportation in Country X. The executive knows that the official, who has a reputation for

honesty, can make a better deal elsewhere, but that he also is experiencing personal financial difficulties. So the executive offers the official \$300,000 to authorize the purchase of the planes from Company A. The official accepts the bribe and orders the planes to be purchased.²⁹

On the basis of this paradigm case, we can give the following more complete definition of a bribe than the one offered in Chapter 2:

A bribe is a payment of money (or something of value) to another person in exchange for his giving special consideration that is incompatible with the duties of his office, position, or role.³⁰

Keep in mind that bribes presuppose an agreement that the bribe must be in exchange for a certain type of conduct. If this agreement is not present, then it is hard to distinguish bribes from gifts or rewards.

Giving and receiving bribes are both forbidden by professional engineering codes. There is good reason for this:

1. If an engineer takes a bribe, then she is creating a situation that will most likely corrupt her professional judgment and tarnish the reputation of the engineering profession.
2. If she offers a bribe, then she engages in activity that will also tarnish the reputation of her profession if discovered and probably violate her obligation to promote the well-being of the public.
3. Bribery induces the person who is taking the bribe to act immorally by violating the obligation to act on behalf of the interests of his client or employer. For example, it can induce a government official to break the obligation to act on behalf of the best interests of the citizenry.
4. Bribery can also undermine the efficiency of the market by inducing someone to buy products that are not the best for the price.
5. Bribery can give someone an unfair advantage over his competitors, thus violating the standards of justice and fair play.

John T. Noonan, jurist and authority on the history of morality, argues that the opposition to bribery is becoming stronger throughout the world.³¹ There is massive popular discontent with bribery in Japan, Italy, and other countries. The antibribery ethic is increasingly embodied in the law. Even campaign contributions, which have many similarities with bribery, are becoming increasingly suspect. Although there are many points of dissimilarity between bribery and slavery, there is some basis for saying that, just as slavery was once accepted but is now universally condemned, so bribery is increasingly held to be morally unacceptable even if not universally condemned.

Extortion

Many cases that might look like bribery are actually cases of extortion. Suppose the same executive knows that he is offering the best deal on airplanes to the official in Country X, who has the authority to authorize purchases for his national airlines. The executive knows, however, that the official will not deal with him

unless he offers the official a large cash payment. The executive offers the payment to the official, and the official authorizes the purchase of the airlines. This is extortion rather than bribery.

It is more difficult to offer a definition of extortion; for example, here is a proposed (but inadequate) definition: "Extortion is the act of threatening someone with harm (that the extorter is not entitled to inflict) to obtain benefits to which the extorter has no prior right."³²

This definition is inadequate because some actions not covered by the definition are still extortion. For example, it would be extortion if I threatened to expose the official misconduct of a government official unless he pays me a large sum of money—even though exposing the official would be both morally and legally permissible. We find it impossible, however, to give a completely adequate definition of extortion. All we can say is that this definition gives a sufficient (though not necessary) condition of extortion.

Sometimes it is difficult to know whether one is paying bribery or extortion. An inspector who demands a payoff to authorize a shipment of a product may claim that the product does not meet standards. It may be difficult to know whether he is lying—and too expensive to find out. In this case, a company may decide to pay off without knowing whether it is paying a bribe or extortion. Of course, it may be irresponsible for the company to make no effort to find the truth.³³

Many of the most famous cases of corruption seem to border both bribery and extortion. Between 1966 and 1970, for example, the Gulf Oil Corporation paid \$4 million to the ruling Democratic Republican Party of South Korea. Gulf was led to believe that its continued flourishing in South Korea depended on these payments. Some critics believe that Lockheed's payments to Korean officials may have been extortion payments rather than bribery payments. If the payments gave Gulf special advantages over Boeing and McDonnell Douglas, then it was bribery. If the Korean officials would have requested and received payments from either of the other two firms if Lockheed had refused, then the payments might better be classified as extortion payments.³⁴

The moral status of paying extortion is different from the moral status of paying and accepting bribes, as a consideration of the five arguments against bribery shows:

1. Paying extortion will not usually corrupt professional judgment.
2. Although paying extortion can tarnish one's professional reputation, it will probably not do so as much as paying a bribe.
3. Paying extortion will not cause one to act contrary to the best interests of one's employer or client by, for example, selecting an inferior product, but it does involve the use of a client's or employer's money.
4. Paying extortion does not undermine the efficiency of the market by promoting the selection of inferior or more expensive products, but it does divert funds from their most efficient use.
5. Finally, paying extortion does not give one an unfair advantage over others, except insofar as others do not or cannot pay the extortion. The main problem with paying extortion is that it perpetuates a practice that is a type of theft.

Grease Payments

Grease payments are offered to facilitate routine bureaucratic decisions, such as hastening the passage of goods through customs. They do not give one an unfair advantage over others, assuming that others make the payments too, and they are often tacitly condoned by governments. Unlike bribes, grease payments are not made to get someone to violate their duties. They are a form of petty extortion, or even perhaps fees for services to be rendered. For example, in many countries, customs officials may not be paid an adequate salary, and the government may assume that officials will receive grease payments to supplement their salary, just as employers assume waiters will supplement their income with tips. Still, grease payments would be better eliminated and replaced with higher fees, which could then be passed on to officials in the form of more adequate salaries. In this way, the payments would not have to be kept secret.

There is a slippery slope, furthermore, leading from grease payments to payments intended to gain special consideration over others. As was earlier noted, sometimes the grease payment may allow the passage of inferior goods through customs, thus giving one an advantage over those who do not make the payment. A fee to get telephone service in three weeks rather than six months or to get a permit expedited through a government bureaucracy by putting a person at the front of a cue clearly gives someone an advantage over others.

Gifts

In some cultures, an exchange of gifts is a way to cement personal relationships. Business relationships, in turn, are built on personal relationships. Further, in some cultures, one is expected to show favoritism toward “friends,” even when one acts in an official capacity. Many societies find the impersonal nature of Western business transactions—separated as they are from personal friendships and family ties—to be unnatural and even offensive. Sometimes, these payments may be illegal in the country, even though the laws may not be enforced. Geoffrey Fadiman suggests that one answer to this dilemma is to give gifts to the community rather than to individuals.³⁵

The CT norms have presumptive priority over local norms, but their application is not a simple matter. This is because the application of the norms as of all ethical principles involves one or both of two procedures: specification and balancing.³⁶ Specification is fitting a general norm to a specific set of conditions. An example of specification is found in a statement of Texas Instruments regarding its policies on gift-giving in countries other than the United States:

TI generally follows conservative rules governing the giving and receiving of gifts. However, what we consider to be an excessive gift in the U.S. may differ from what local customs dictate in other parts of the world. We used to define gift limits in terms of U.S. dollars, but this is impractical when dealing internationally. Instead, we emphasize following the directive that gift-giving should not be used in a way that exerts undue pressure to win business or implies a quid-pro-quo.³⁷

An "excessive" gift in the United States might not be excessive in another part of the world, so the norm regarding bribes and gifts must be adapted or specified to fit the cultural conditions in a given society. This process involves three phases: (1) examining the gift-giving practices in a given culture, (2) looking back at the intent of the original norm governing gift-giving, and (3) coming up with a norm that takes proper account of these two considerations. We can examine how each of these three phases might be applied to the issue of giving gifts in Country X:

1. Suppose affluent members of Country X routinely give gifts of substantial size to one another as tokens of friendship and esteem. Because the gifts are routinely given and received by everyone, they do not command any special favors. We can call these substantial gifts "normal" and distinguish them from still larger gifts that would be necessary to command special favors.

2. The intent of the norm against giving "excessive" gifts is to prevent the giving of gifts that would curry favor and thus be a form of unfair competition. However, gifts that would be termed "excessive" in the home country are considered "normal" gifts in Country X, and they do not curry special favor. So, in Country X, giving "normal" gifts by that country's standards would not violate the intent of the norm against giving excessive gifts.

3. Therefore, giving "normal" gifts in Country X by Country X's standards would not be "excessive" in the way this term is intended. This example shows how the method of specification can be used to preserve the original intent of a norm in a different culture or circumstances. In applying them to particular situations, all of the CT norms must be specified in a similar way.

10.6 Sweatshops in Asia

To illustrate the ideas presented in this chapter, let us return to the case presented at the beginning of this chapter. Recall that Engineer Jane is about to be sent to Country X to direct the installation of new equipment in a factory where young women are employed for \$0.80 per day to make clothes for export. As the narrative of the case indicated, the working conditions are clean and safe, and the young women prefer the work to village life. Nevertheless, Jane wonders whether she should take the assignment.

Many of the CT norms do not appear to be violated. There is no significant problem with paternalism, bribery, respecting the cultural traditions and laws of the host country, promoting the health and safety of citizens, protecting the environment, or promoting the background institutions of the host country. It might be argued that the welfare of the host country is being adversely affected because the workers are paid such low wages, but a contrary argument might be made that clothing manufacturing is an important first step in industrialization and hence promotes the welfare of the country at large. The most likely

candidates for violation, therefore, are (1) the human right to a minimal standard of living and (2) the prohibition of exploitation. Whether the standard of living is below the "minimal" level is an interesting question that might be hard to resolve. The real question seems to be whether the low wages could be considered exploitative. So let us look at this question: Are the young women being exploited?

Recalling the definition of exploitation, we can say that several of the criteria are met. There is an imbalance of power between Harwell & James and the young women. The young women need the money from the firm to escape village life and live in the cities. Harwell & James (or other clothing companies) may well be the only source of needed funds other than undesirable sources such as begging and prostitution. We may also want to grant that the compensation to the young women is inadequate. There is a question, however, as to whether Harwell & James exercises discretionary control over the compensation to the young women. Given the highly competitive nature of the clothing industry, could the firm afford to pay the young women more? If it could, then we must consider the firm's treatment of the young women to be exploitative. If it cannot, then its treatment of the young women is at least not a paradigm of exploitation because it does not fulfill all of the conditions, even though it still has many of the characteristics of exploitation. As with so many moral issues, the final conclusion depends heavily on a careful analysis of the facts.

If we should conclude that the relationship of Harwell & James to the young women is indeed exploitative, then there remains the question of whether the exploitation is justified. The justification would involve citing other CT norms that might override the norm that prohibits exploitation. The most obvious candidate here is a consideration we have already mentioned, namely the fifth CT norm, which requires the promotion of the welfare of the public. The argument would be that promoting the economic development of Country X justifies a certain degree of exploitation of its people.

Recall that an important consideration in resolving a conflict between two CT norms is asking how serious the violations are. In this way, we can determine which norm should prevail. In this case, if the exploitation is rather mild, the constraints on Harwell & James are considerable, and the importance of the clothing industry to the economic development of Country X is considerable, then the exploitation might be justified. In this case, notice that the crucial issue is a moral issue, not a factual issue.

10.7 Chapter Summary

Engineers often face difficult decisions in moving from their country of origin (the "home country") to another country (the "host country"). If the two countries have different values, then it may not be proper to either carry over values from

the home country without modification or accept the values of the host country without modification. As an aid in making decisions about what values to adopt, it would be useful to identify values or norms that are as near to being universal as possible. These values can be derived from major ethical philosophers, religious teachers, and international documents such as the United Nations' Universal Declaration of Human Rights. The codes of engineering societies should also apply in the international context. We can call these universal or near-universal values *culture-transcending (CT) norms*.

The nine CT norms include the injunctions to:

- avoid exploitation,
- avoid paternalism,
- avoid bribery and giving or receiving excessive gifts,
- refrain from violating human rights,
- promote the welfare of the host country,
- respect the cultural norms and laws of host countries,
- protect the health and safety of host-country citizens,
- protect the host-country environment, and
- promote a society's legitimate background institutions.

In applying the CT norms, common sense must be observed. Engineers should avoid moral laxism and rigorism, give the presumption to the host country's norms when they do not conflict with CT norms, look for creative middle ways between home-country and host-country norms, realize that even CT norms may be infringed on occasion, and acknowledge that CT norms may conflict.

Perhaps the most important issue that arises for engineers when they cross international borders is bribery. Bribery must be distinguished from extortion, grease payments, and gifts. Finally, the CT norms should be useful in resolving the case at the beginning of the chapter regarding sweatshops in Asia.

CASES TO CONSIDER

Case 3	Aftermath of Chernobyl
Case 17	Disaster Relief
Case 31	Halting a Dangerous Project
Case 53	"Smoking System" (Apply this in an international setting.)
Case 61	Unlicensed Engineer
Case 70	XYZ Hose Co. (Apply this in an international setting.)
Video	<i>Incident at Morales</i> (National Institute for Engineering Ethics)

NOTES

1. This is a modified version of an actual case presented in Lee A. Travis, *Power and Responsibility: Multinational Managers and Developing Country Concerns* (Notre Dame, IN: University of Notre Dame Press, 1997), pp. 315–338.
2. *Ibid.*, p. 322.
3. *Ibid.*, p. 322.
4. *Ibid.*, p. 334.
5. Sissela Bok, *Common Values* (Columbia: University of Missouri Press, 1995), p. 44.
6. *Ibid.*, p. 13.
7. *Ibid.*, p. 15.
8. *Ibid.*, p. 16.
9. *Ibid.*, p. 17.
10. *Ibid.*, p. 24.
11. *Ibid.*, p. 18.
12. David Wong, *Moral Relativity* (Berkeley: University of California Press, 1984), pp. 386, 394.
13. *Ibid.*, p. 392.
14. For suggestions for several of these sources, as well as for the fundamental approach to international ethics taken in this chapter, see Thomas Donaldson and Thomas W. Dunfee, *Ties That Bind: A Social Contracts Approach to Business Ethics* (Boston: Harvard Business School Press, 1999).
15. Robert E. Goodin, *Protecting the Vulnerable: A Reanalysis of Our Social Responsibilities* (Chicago: University of Chicago Press, 1985), pp. 195–196.
16. For the criticism of professional codes as too paternalistic, see Robert J. Baum, "Engineers and the Public" in D. E. Wueste, ed., *Professional Ethics and Social Responsibility* (Lanham, MD: Rowman & Littlefield, 1994), pp. 121–137. For the expression of concern about excessive paternalism on the part of engineers in host countries, see Eugene Schlossberger, "The Responsibility of Engineers, Appropriate Technology, and Lesser Developed Nations" in *Science and Engineering Ethics*, 3, no. 3, July 1977, pp. 317–325.
17. Thomas L. Carson, "Bribery, Extortion, and the 'Foreign Corrupt Practices Act,'" *Philosophy and Public Affairs*, 14, no. 1, 1985, 66–90.
18. See *The International Bill of Human Rights*, with foreword by Jimmy Carter (Glen Ellen, CA: Entwistle Books, 1981). No author.
19. James W. Nickel, *Making Sense of Human Rights: Philosophical Reflections on the Universal Declaration of Human Rights* (Berkeley: University of California Press, 1987), pp. 108–109.
20. For an expanded version of this argument, see Alan Gewirth, *Reason and Morality* (Chicago: University of Chicago Press, 1978), pp. 98–102.
21. These ideas are modified versions of ones suggested by Alan Gewirth in *The Community of Rights* (Chicago: University of Chicago Press, 1966).
22. Michael Davis, "Thinking Like an Engineer," *Philosophy and Public Affairs*, 20, no. 2, Spring 1991, pp. 150–167. (See pp. 164–165.)
23. For this case and related discussion, see Thomas Donaldson and Thomas W. Dunfee, "Toward a Unified Conception of Business Ethics: Integrative Social Contract Theory," *Academy of Management Review*, 19, no. 2, 1994, pp. 152–284.
24. Travis, *Power and Responsibility*, p. 331.
25. Donaldson and Dunfee, *Ties that Bind*, pp. 114–115, 156–158.
26. For a similar case and a similar conclusion, see Donaldson and Dunfee, *Ties that Bind*, pp. 198–207.
27. See James F. Childress and John Macquarrie, eds., *The Westminster Dictionary of the Christian Church* (Philadelphia: Westminster Press, 1986), p. 499.
28. *Ibid.*, p. 633.
29. This scenario is a modification of one presented by Michael Philips titled "Bribery" in Patricia Werhane and Kendall D'Andrade, *Profit and Responsibility* (New York: Edwin Mellon Press, 1985), pp. 197–220.
30. Carson, "Bribery," pp. 66–90.
31. John T. Noonan, *Bribery* (New York: Macmillan, 1984).

32. Carson, "Bribery," p. 73.

33. Ibid., p. 79.

34. Ibid., p. 75.

35. See some of Fadiman's suggestions for creative middle way solutions in J. A. Fadiman, "A Traveler's Guide to Gifts and Bribes," *Harvard Business Review*, July-Aug. 1986, pp. 122-126, 130-136.

36. For a summary account of the procedures of specification and balancing, see Tom L. Beauchamp and James F. Childress, *Principles of Biomedical Ethics*, 5th ed. (New York: Oxford University Press, 2001), pp. 15-23. See also Henry S. Richardson, "Specifying, Balancing, and Interpreting Bioethical Principles," *Journal of Medicine and Philosophy*, 25, pp. 285-307; and Henry S. Richardson, "Specifying Norms as a Way to Resolve Concrete Ethical Problems," *Philosophy and Public Affairs*, 19, 279-310.

37. See www.ti.com/corp/docs/company/citizen/ethics/market.shtml.